

REASONER, et al v HENDERSON, et al

24CV47538

**PLAINTIFFS' MOTION FOR SUMMARY JUDGMENT OR, IN
THE ALTERNATIVE, SUMMARY ADJUDICATION**

This civil action stems from a dispute over real property and allegations of fraud and elder abuse brought by Donna S. Reasoner ("Donna") by and through her Agent-In-Fact George Reasoner and George Reasoner, individually ("George") (collectively "Plaintiffs") against Teran Henderson ("Henderson") and Elizabeth Cann ("Cann") (collectively "Defendants.") Plaintiffs bring causes of action for 1) fraud, 2) rescission of contract, 3) cancellation of written instrument, 4) declaratory relief, 5) ejectment, 6) unjust enrichment, and 7) financial elder abuse.

Now before the Court is Plaintiffs' Motion for Summary Judgment or, in the Alternative, Summary Adjudication. Defendants filed an untimely opposition.

Defendants have failed to comply with Code Civil Procedure section 473c(b)(3) and California Rules of Court Rule 3.1350(f). Under Code Civil Procedure section 473(c)(b)(3) when opposing a motion for summary judgment, the opposing party must provide:

[A] separate statement that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed. The statement also shall set forth plainly and concisely any other material facts the opposing party contends are disputed. Each material fact contended by the opposing party to be disputed shall be followed by a reference to the supporting evidence. Failure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court's discretion, for granting the motion.

California Rule of Court 3.1350(f) sets out the specific format for the separate statement.

"The requirement of a separate statement from the moving party and a responding statement from the party opposing summary judgment serves two functions: to give the parties notice of the material facts at issue in the motion and to permit the trial court to focus on whether those facts are truly undisputed." (*Parkview Villas Assn., Inc. v. State Farm Fire & Casualty Co.* (2005) 133 Cal App.4th 1197, 1210.)

The Court is cognizant of the Defendants' pro se status and the fact that Defendants did attempt to oppose the motion (albeit by filing an untimely and improperly formatted opposition). Under these circumstances, the Court exercises its discretion to continue the hearing on the motion for summary judgment until Defendants have had an opportunity to correct their deficient opposition. (*Parkview*, 133 Cal.App. 4th at 1211.)

Accordingly, the Defendants are ordered to provide an opposition that complies with the requirements of Code of Civil Procedure section 473c and California Rules of Court 3.1350(f.) The code-compliant opposition and supporting papers must be filed by 3:00 p.m. on April 10, 2026. Plaintiff has until 3:00 p.m. on April 22, 2026, to file a Reply. The continued hearing will be conducted on May 1, 2026 at 9:00 a.m. in Dept. 2. (A tentative ruling will be posted to the Court's website by 2:00 p.m. on April 30, 2026. Any request for oral argument must be communicated to the Court and opposing side by 2:00 p.m. on 4/30/26 in compliance with Local Rule 3.3.7.)

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.

LVNV FUNDING, LLC v LINTHICUM

25CF15506

PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS

This is an action by LVNV Funding LLC, as successor in interest to Citibank, NA ("Plaintiff") against Kay M. Linthicum ("Defendant") for the collection of a credit card debt in the sum of \$ \$22,579.20.

In her Answer, Defendant raised affirmative defenses to Complaint including that she had been caring for an ill husband who passed away, and that she is on extremely limited income.

Now before the Court is Plaintiff's motion for judgment on the pleadings.

I. Legal Standard

A motion for judgment on the pleadings serves the same function as a demurrer but is made after the time for demurrer has expired. (Code Civ. Proc., § 438(c)(2); *Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999.) Except as provided by statute, the rules governing demurrers apply. (*Id.*) The court must accept as true the factual allegations of the complaint and must give them a liberal interpretation. (*Gerawan Farming, Inc., v. Lyons* (2000), 24 Cal. 4th 468, 515-516.) In addition, the court is limited in its consideration to the face of the pleadings or matters entitled to judicial notice. (Code Civ. Proc. § 438(d).)

If the motion is granted in favor of the plaintiff, "it shall be based on the grounds that the complaint states facts sufficient to constitute a cause of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. (Code Civ. Proc. §438(c)(3)(a).)

II. Legal Analysis

A breach of contract claim requires: 1) the existence of a contract, 2) plaintiff's performance or excuse for nonperformance, 3) defendant's breach, and 4) the resulting damages to the plaintiff. (*San Mateo Union High Sch. Dist. v. Cnty. of San Mateo*, (2013) 213 Cal. App. 4th 418, 439.) "Where contract language is clear and explicit and does not lead to absurd results, we ascertain intent from the written terms and go no further." (*Shaw v. Regents of Univ. of Cal.*, (1997) 58 Cal. App 4th 44, 53.)

Plaintiff is a debt buyer that is regularly engaged in the business of purchasing charged-off consumer debt for collection purposes, as defined in California Civil Code section 1788.50, subdivision (a)(1). (Complaint ¶ 5.) Defendant and Citibank entered into a contract for a consumer credit card. (*Id.* ¶ 6.) Plaintiff purchased the debt from